

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Matthew Corwin	Team: Squad #10	CCRB Case #: 201806488	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Tuesday, 08/07/2018 9:42 PM	Location of Incident: Inside and outside 47 East Gun Hill Road.	Precinct: 52	18 Mo. SOL 2/7/2020	EO SOL 2/7/2020	
Date/Time CV Reported Thu, 08/09/2018 11:28 AM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Thu, 08/09/2018 11:28 AM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POF Dorli Rodriguez	14403	962060	052 PCT
2. POM Eric Dipaolo	16957	959603	052 PCT
3. LT Kevin Maloney	00000	904435	052 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Timothy Burke	17244	954584	052 PCT

Officer(s)	Allegation	Investigator Recommendation
A.POM Eric Dipaolo	Abuse: Police Officer Eric Dipaolo forcibly removed § 87(2)(b) to the hospital.	
B.POF Dorli Rodriguez	Abuse: Police Officer Dorli Rodriguez forcibly removed § 87(2)(b) to the hospital.	
C.LT Kevin Maloney	Abuse: Lieutenant Kevin Maloney forcibly removed § 87(2)(b) to the hospital.	
§ 87(2)(g), § 87(4-b)		

Case Summary

On August 09, 2018, § 87(2)(b) filed this complaint with the CCRB over the phone.

At approximately 9:42 p.m. on August 07, 2018, § 87(2)(b) was in a Dunkin Donuts located at 47 East Gun Hill Road in the Bronx. § 87(2)(b) got into an altercation with an employee at the Dunkin Donuts and § 87(2)(b) called 911.

Police Officer Eric Dipaolo and Police Officer Dorli Rodriguez, both of the 52nd Precinct, arrived on scene and spoke with § 87(2)(b).

PO Dipaolo and PO Rodriguez were sitting in their car when § 87(2)(b) banged on the car. PO Dipaolo and PO Rodriguez got out, placed § 87(2)(b) in handcuffs, and called for an ambulance. **(Allegation A: Abuse of Authority: forcible removal to the hospital: § 87(2)(g) Allegation B: Abuse of Authority: Forcible Removal to the Hospital: § 87(2)(g)**

Lieutenant Kevin Maloney, of the 52nd Precinct, heard the call over the radio and went to the incident location. He spoke with PO Dipaolo and PO Rodriguez. He then instructed PO Dipaolo and PO Rodriguez to escort § 87(2)(b) to the hospital **(Allegation C: Abuse of Authority: forcible removal to the hospital: § 87(2)(g)** PO Dipaolo and PO Rodriguez then drove § 87(2)(b) to § 87(2)(b), § 87(2)(g), § 87(4-b)

Two approximately two-hour long surveillance videos were obtained by the investigation **(Board Review 01)** and **(Board Review 02)**. Footage from these videos was edited into one chronological video that covers the incident in its entirety **(Board Review 03)**. This edited video is the video that will be referenced throughout the following report. A summary of this video was prepared by the investigation **(Board Review 04)**.

Findings and Recommendations

Allegation A: Abuse of Authority: Police Officer Eric Dipaolo forcibly removed § 87(2)(b) to the hospital.

Allegation B: Abuse of Authority: Police Officer Dorli Rodriguez forcibly removed § 87(2)(b) to the hospital.

Allegation C: Abuse of Authority: Lieutenant Kevin Maloney forcibly removed § 87(2)(b) to the hospital.

§ 87(2)(b) provided a statement over the phone on August 15, 2018 **(Board Review 05)** and was interviewed at the CCRB on September 21, 2018 **(Board review 06)**. PO Dipaolo was interviewed on October 02, 2018 **(Board Review 07)**. PO Rodriguez was interviewed on October 02, 2018 **(Board Review 08)**. Lieutenant Maloney was interviewed on October 31, 2018 **(Board Review 09)**.

It is undisputed that on the incident date, § 87(2)(b) got into an altercation with a female employee at a Dunkin Donuts located at the corner of East Gun Hill Road and Dekalb Avenue. She called 911 and soon after, PO Dipaolo and PO Rodriguez arrived at the incident location.

After speaking with § 87(2)(b) and employees in the Dunkin Donuts, PO Dipaolo and PO Rodriguez took no further police action and got into their car to leave. They were sitting in their car writing in their memo books, when § 87(2)(b) crossed the street and approached their car. § 87(2)(b) then banged on a window of the police car and PO Dipaolo and PO Rodriguez got out of the car and placed § 87(2)(b) in handcuffs.

PO Dipaolo put a call over the radio for EMS, but all ambulances in the area were in backlog. Three other units arrived at the incident location, one of which was Lieutenant Maloney and his operator, PO Burke. Lieutenant Maloney spoke with PO Dipaolo and PO Rodriguez and briefly observed § 87(2)(b). He then approved removing § 87(2)(b) to the hospital.

PO Dipaolo and PO Rodriguez drove § 87(2)(b) to § 87(2)(b), where she was assessed by a doctor and released later that night.

§ 87(2)(b) § 87(2)(g) stated that when PO Dipaolo and PO Rodriguez arrived, she told them what happened but they did not ask her any questions. § 87(2)(b) stated that she was speaking in a normal tone and was not cursing. § 87(2)(b) and the officers entered the Dunkin Donuts and an employee told § 87(2)(b) to leave the store. § 87(2)(b) left the store and walked westbound on East Gun Hill Road and crossed the street at the crosswalk. Then she crossed the street going south on Dekalb Avenue using the crosswalk. She entered a candy store and asked a worker there if she could use their phone to call the 52nd Precinct to get other officers to respond.

Approximately twenty minutes later, § 87(2)(b) noticed that a police car was still parked outside the Dunkin Donuts on the Dekalb Avenue side. She approached the car and saw PO Dipaolo and PO Rodriguez sitting in the car. She waved to get the officers' attention, but they did not acknowledge her or roll down their windows. The officers began to drive away and § 87(2)(b) banged on the back windshield twice with a closed fist.

The car stopped abruptly and PO Dipaolo got out of the car, ran to § 87(2)(b) placed her in handcuffs, and put her in the backseat of the police car. § 87(2)(b) was sitting in the backseat of the car with the door open for about ten minutes when an unspecified number of other officers arrived. An unknown officer said that § 87(2)(b) was his mother, but § 87(2)(b) did not know what this meant. While she was in the backseat, § 87(2)(b) began to curse and yell. She was then driven to the hospital.

In her statement, PO Rodriguez stated that when they arrived at the incident location, § 87(2)(b) was outside. She was moving a lot, was very loud, and was not making much sense.

A manager inside the Dunkin Donuts told the officers that the staff and § 87(2)(b) were arguing back and forth and they wanted her out of the store. A security guard and multiple witnesses also said that § 87(2)(b) was getting loud with them. Everyone in the store said that it was just a

verbal dispute and that barely anything happened. They also told PO Rodriguez and PO Dipaolo that they wanted § 87(2)(b) to leave the store. § 87(2)(b) came inside the Dunkin Donuts while the officers were inside. § 87(2)(b) was screaming and moving her hands around in a manner that made it seem like she might get aggressive although PO Rodriguez did not specify exactly what she thought § 87(2)(b) might do.

PO Rodriguez and PO Dipaolo left the Dunkin Donuts and went into their car. At this point, PO Rodriguez had determined that the job was done because § 87(2)(b) seemed fine and had left the incident location. PO Rodriguez and PO Dipaolo were sitting in their car when § 87(2)(b) came back and was banging on the front and side of the police car. The banging was strong, but she could not determine if the banging was hard enough to dent the car or break a window. § 87(2)(b) was banging on the car for approximately one minute and then PO Rodriguez and PO Dipaolo got out of their car. They both made the decision to get out because they were alarmed by her behavior. When they got out of the car, they asked her what was going on. § 87(2)(b) was yelling and cursing. She called PO Rodriguez a “nigger” and told her that she “smelled like rice, chicken, and beans.” PO Rodriguez felt like if they did not take action, § 87(2)(b) might hit someone or hurt herself.

PO Rodriguez and PO Dipaolo then placed her in handcuffs. They put her in the police car while they were waiting for an ambulance to arrive. The ambulances were in backlog so PO Rodriguez and PO Dipaolo waited for their Lieutenant to arrive and give them instruction about what to do. While they were waiting, § 87(2)(b) was moving around inside the car and was banging on the inside of the car with her hands and legs as if she were trying to get out.

Lieutenant Maloney arrived and saw the way § 87(2)(b) was behaving and approved PO Rodriguez and PO Dipaolo removing her to the hospital. On the drive to the hospital, § 87(2)(b) continued to curse at PO Rodriguez and PO Dipaolo. She was moving her body side to side throughout the ride.

In her memo book (**Board Review 10**), PO Rodriguez wrote, “Female highly uncooperative. Refused to speak to me and called my partner a rapist, claiming she was not assaulted.”

PO Dipaolo § 87(2)(g) stated that he and PO Rodriguez responded to a radio run for an assault in progress and when they got to the incident location, § 87(2)(b) was outside and moving around and yelling loudly. PO Dipaolo stated that he had interacted with § 87(2)(b) in the past and he believed that she had a history of being removed to the hospital as an Emotionally Disturbed Person (EDP) although he could not provide specific details. PO Dipaolo and PO Rodriguez asked § 87(2)(b) what happened, where she was hurt, and if she had been hit.

PO Dipaolo and PO Rodriguez went inside the Dunkin Donuts and the employees told PO Dipaolo that § 87(2)(b) was a common problem at that store.

After they decided to leave with no further action, PO Dipaolo and PO Rodriguez were in their car writing memo book entries when § 87(2)(b) crossed the street back towards them and began to bang on their car. She was banging on the passenger side of the car and the passenger window. She also banged on the hood of the car. The banging was much harder than a knock to get their

attention, although PO Dipaolo did not think she was banging hard enough to break the window glass because of her stature.

PO Dipaolo placed § 87(2)(b) in handcuffs because she was in and out of the street and that behavior combined with the banging on the car made him believe that § 87(2)(b) might hurt somebody, hurt someone else, or get hit by a car. PO Dipaolo then put a call over the radio for EMS.

Lieutenant Maloney then arrived at the incident location. When he arrived, § 87(2)(b) began to yell at him and he approved removing § 87(2)(b) to the hospital. PO Dipaolo and PO Rodriguez then drove § 87(2)(b) to § 87(2)(b).

At 10:00 p.m., PO Dipaolo wrote in his memo book (**Board Review 11**), “Spoke with C/V who was highly uncooperative. C/V refused to talk to my partner and stated I was a rapist. Also spoke with 3 witnesses inside claiming she was not assaulted. No injuries.” At 10:12 p.m., he wrote, “Escorting 1 female EDP to § 87(2)(b) as per Lieutenant.”

In his statement, Lieutenant Maloney said that he and his operator, PO Burke, responded to a radio run about an EDP on the corner of East Gun Hill Road and Dekalb Avenue and were only at the incident location for approximately 50 seconds. When they got to East Gun Hill Road and Dekalb Avenue, he observed § 87(2)(b) acting in a way that he characterized as irrational because she was screaming racial epithets. She was yelling things like, “Filthy spics” and “Niggers.” She was also speaking very rapidly to the point that Lieutenant Maloney had a difficult time understanding what she was saying. § 87(2)(b)’s rapid speech led Lieutenant Maloney to believe that she could be intoxicated or off her medication.

The neighborhood that they were in was comprised primarily of black and Hispanic people. Lieutenant Maloney thought that her language would be particularly offensive and potentially create problems for § 87(2)(b).

Lieutenant Maloney did not himself make the decision that § 87(2)(b) should go to the hospital as the units on the scene had already requested the ambulance. However, Lieutenant Maloney’s observation of § 87(2)(b) confirmed to him that the officers had made the correct decision. Before Lieutenant Maloney left the scene, he instructed the officers to escort § 87(2)(b) to the hospital. Ultimately, § 87(2)(b)’s behavior and language were the factors that led Lieutenant Maloney to think she should be taken to the hospital.

At the start of the surveillance video from Dunkin Donuts, § 87(2)(b) is standing by a stool inside the Dunkin Donuts. § 87(2)(b) walks over to the counter and is speaking to a woman standing behind the counter.

Between 3:00 and 6:45 in the video, the woman behind the counter approached § 87(2)(b) and puts an arm on § 87(2)(b)’s back and points towards the door. She then grabs § 87(2)(b)’s arm. § 87(2)(b) walks away from the woman and throws a cup on the floor. The woman behind the counter then approaches § 87(2)(b) and grabs her hand and then her pocketbook and leaves the Dunkin Donuts with the bag. The woman then reenters the Dunkin Donuts and throws the bag at § 87(2)(b). § 87(2)(b) then leaves the Dunkin Donuts and walks out of the video’s range.

Between 8:57 and 16:55 in the video, PO Dipaolo and PO Rodriguez arrive at the location, interact with § 87(2)(b) and then enter the Dunkin Donuts. The officers speak with the Dunkin Donuts Employees and then exit and speak with § 87(2)(b) outside. She is standing with her arms at her side and is not depicted making any sudden or large movements. § 87(2)(b) and the officers enter the Dunkin Donuts again and they all appear to speak with employees inside. § 87(2)(b) is depicted standing in place and not making noticeable physical motions towards the officers or Dunkin Donuts employees.

At 17:25, § 87(2)(b) crosses the street westbound using the crosswalk. Between 17:35 and 17:44, § 87(2)(b) stands at the corner while traffic is moving. At 17:44, traffic stops and § 87(2)(b) crosses the street southbound using the crosswalk. Approximately five minutes later, at 22:52 in video, § 87(2)(b) is in the distance and can be seen crossing the street eastbound before heading north towards the police car. Each time she crosses the street, she crosses using the appropriate crosswalk. She is not depicted being exposed to any oncoming traffic.

Between 23:10 and 24:15, § 87(2)(b) stands by the police car for approximately one minute. The car begins to drive off and stops abruptly. At 24:35, PO Dipaolo and PO Rodriguez exit their car and converge on § 87(2)(b). The video becomes unclear at this point, but at 25:14, § 87(2)(b) is standing next to the police car.

At 29:15, Lieutenant Maloney and PO Burke arrive at the incident location. At this point, there are a number of unidentified officers present. Lieutenant Maloney stands on the corner of Dekalb and Gun Hill Road next to other officers present. At 30:29, Lieutenant Maloney gets back into his car and drives away at 31:12.

At 38:33, PO Rodriguez and PO Dipaolo drive away from the incident location with § 87(2)(b) in their car.

The Event information, chronology, and unit information shows that § 87(2)(b)'s 911 call came in as an assault at 9:41 p.m. At 9:44 p.m., PO Dipaolo and PO Rodriguez arrived at the incident location. At 9:59 p.m. the job was changed from an assault to an EDP job and PO Dipaolo and PO Rodriguez requested an ambulance. At 10:12 p.m., PO Dipaolo and PO Rodriguez are shown escorting § 87(2)(b) to § 87(2)(b) (**Board Review 12**).

The 911 call and communications were obtained and summarized by the investigation (**Board Review 13**). At 9:41 p.m., § 87(2)(b) called 911. The phone call started with § 87(2)(b) calling someone a "Fucking Whore Slut" repeatedly. She then told the operator that she wanted police to come to the Dunkin Donuts on East Gun Hill Road and Dekalb Avenue. She said that a Hispanic female just attacked her and grabbed her bag. § 87(2)(b) stressed that she is white and § 87(2)(b). She provided her name as well (**Board Review 14**).

At 9:42 p.m., dispatch told unit 52 D1 (PO Dipaolo and PO Rodriguez) that they needed to respond to a 34 at East Gun Hill Road and Dekalb Avenue and that a female was assaulted at the Dunkin Donuts. PO Dipaolo told dispatch to show 52D1 going to the incident location. At 9:44 p.m., PO Dipaolo put over the radio that it was not a 34. Dispatch put over the radio that no other units should respond to the incident (**Board Review 15**).

At 9:58 p.m. PO Dipaolo requested that an ambulance come to East Gun Hill Road for a violent EDP. A lieutenant told dispatch to show him responding (**Board Review 16**). At 10:11 p.m., PO Dipaolo told dispatch to show him escorting one female EDP to § 87(2)(b). Yelling can be heard in the background (**Board Review 17**).

Medical Records from § 87(2)(b) state that § 87(2)(b) was exhibiting aggressive behavior. The records state that § 87(2)(b) had a history of alcohol dependence and schizoaffective disorder. The records state that § 87(2)(b) had multiple past inpatient psychiatric admissions at § 87(2)(b) the most recent of which occurred in 2014. The records also state that § 87(2)(b) was not a self-harm risk and that she was not abusing alcohol or other substances at the time of the incident. The records show that § 87(2)(b) arrived at the hospital at § 87(2)(b) and was seen by a doctor starting at § 87(2)(b). She was discharged from the hospital at § 87(2)(b) (**Board Review 18**).

Patrol Guide procedure 221-13 states that a member of service can forcibly remove someone to the hospital when they reasonably believe that a person who is apparently mentally ill or emotionally disturbed must be taken into protective custody because the person is conducting himself in a manner that likely to result in serious injury to himself or others. It also states that members of service should not take an EDP into custody without the specific direction of a supervisor. Members of service are required to request the response of a patrol supervisor (**Board Review 19**).

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

[REDACTED]

§ 87(2)(g)

§ 87(2)(g), § 87(4-b)

[illegible]

[REDACTED]

[REDACTED]

[REDACTED]

Civilian and Officer CCRB Histories

- This is § 87(2)(b)'s second CCRB complaint. § 87(2)(b)
- PO Rodriguez has been a member of service for 2 years and this is the first CCRB case to which she has been a subject.
- PO Dipaolo has been a member of service for three years and has been a subject in two complaints and seven allegations.
 - CCRB case number 201901322 involves allegations of an entry, physical force, threat of arrest, discourtesy, and threat re: removal to hospital. The investigation is currently open.

- Lieutenant Maloney has been a member of service for 25 years and has been a subject in 20 cases and 49 allegations, of which eight were substantiated § 87(2)(g), § 87(4-b)
- CCRB case number 9601814 involved two substantiated allegations of discourtesy against Lieutenant Maloney. The board recommended command discipline for both allegations. Lieutenant Maloney's CCRB history does not note what, if any, discipline was imposed by the NYPD.
- CCRB case number 9602913 involved substantiated allegations of force and discourtesy against Lieutenant Maloney. The Board recommended Command Discipline for both allegations. Lieutenant Maloney's CCRB history does not note what, if any, discipline was imposed by the NYPD.
- CCRB case number 200402794 involved substantiated allegations of a strip search, a frisk, § 87(2)(g), § 87(4-b) The board recommended charges and the NYPD imposed Instructions.
- CCRB case number 200411152 involved two substantiated allegations of force against Lieutenant Maloney. The board recommended charges and the NYPD imposed no discipline.
- § 87(2)(g)

Mediation, Civil and Criminal Histories

- § 87(2)(b) declined to mediate this complaint
- A request for any Notice of Claim regarding this incident has been submitted to the New York City Comptroller's Office, and the results will be added to the case file upon receipt.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 10

Investigator:	_____	_____	_____
	Signature	Print Title & Name	Date
Squad Leader:	_____	_____	_____
	Signature	Print Title & Name	Date
Reviewer:	_____	_____	_____
	Signature	Print Title & Name	Date

